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**Probate Calendar for Tuesday August 25, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates Presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
4	21PR-0279	Estate of: Betty Robinson	Petition Filed 10/09/2023; Petition for Final Distribution Waiver of Accounts [DUE 7/24/26]; (Amended 9/16/24) cont'd 4/30/24, 10/08/24, 9/2/25	CONTINUED LIST: <i>The Petition is continued to April 13, 2027, at 9:00 am. in D-4 to be heard after the Status Report filed August 11, 2025. All additional items must be filed by March 16, 2026. The following is noted:</i> <i>The Amendment to the Petition for Final Distribution and Petition and Assignments of Interest to the Estate of Betty Robinson confirms the property listed as part of this estate (estate of Betty Robinson), property at 257 9th Street San Miguel (Property), currently belongs to the Estate of James Baker, father of the Decedent. A proceeding to clear title out of the Estate of James Baker and transfer the property to the heirs of that estate is needed. The attempt to identify the possible heirs of the estate of James Baker informally and then assign the property to this probate estate using Probate Code section 11604, is not supported by any legal authority. Probate Code section 11604 deals with beneficiaries of the estate of Betty Robinson, as defined by Prob. Code, §24 assigning</i>

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				<i>their interest in this estate to others, unverified heirs of another estate assigning another estate asset to this estate.</i> 2. <i>It does not appear from the materials provided by Petitioner that the property is actually owned by the Decedent. It is unclear at this time how the court can approve the distribution as prayed. The matter is recommended for a long continuance so the Petitioner can address how to deal with the property vested in the name of James Baker.</i> 3. <i>The balance of the Petition and Amendment to the Petition cannot be determined until the property is legally found to be part of this estate.</i>
8	23PR-0238	Estate of: James Lombardo	Order to Show Cause re Status Report [DUE 7/21/26]; cont'd 1/27/26	OFF CALENDAR. <i>A Petition for Termination of Administration was filed on May 7, 2026 and is currently set for hearing on October 13, 2026.</i>
12	25PR-0125	Estate of: David Bezerra	Petition Filed 2/09/26 - Final Distribution & Accounting	CONTINUED LIST. <i>The Petition is continued to February 16, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 19, 2027. The following is noted:</i> 1. <i>On the Summary of Account, the total charges do not match the total credits. The Account is off balance. Amendment is needed.</i> 2. <i>The total amount listed in Item 27 of the Petition and the total amount listed in Schedule G: Property on Hand at Close of Account do not match.</i> 3. <i>A copy of the final escrow closing statement on the sale of the real property is needed.</i>

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				4. <i>A proposed order is needed.</i>
13	25PR-0219	Estate of: Christopher Dale	Petition Filed 2/12/2026 - Final Distribution Waiver Account	CONTINUED LIST. <i>The Petition is continued to February 16, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 19, 2027. The following is noted:</i> 1. <i>Mandatory Judicial Council Forms DE-174 Allowance or Rejection of Creditor Claims was not located for either of the claims on file. It is noted that Attachment 30 to the Petition indicates that the form has not been filed due to the executor's authority under the Independent Administration of Estate Act. However, this is a mandatory form. It is understood the claims were paid.</i> 2. <i>The Supplement filed August 6, 2026 appears to be an Amendment to a pleading pursuant to California Rules of Court, rule 7.3 (4). As such, new Notice of Hearing is needed under California Rules of Court, rule 7.53(a). A continuance is needed.</i> 3. <i>A copy of the final escrow closing statement on the sale of the real property is needed.</i> 4. <i>A revised proposed order is needed.</i>
16	26PR-0043	Estate of: Joaquin Diaz	Petition Filed 2/12/16 - Spousal Property Petition	DENIED LIST: <i>The evidence provided confirms that the property was not community property and was instead specifically transmuted as sole and separate property.</i>
21	26PR-0089	Estate of: Terry Romero	Competing Petition Filed: 6/26/2026 WILL	CONTINUED LIST. <i>The Petition is continued to October 6, 2026 at 9:01 a.m. in D-4 to be heard with the other pending Petitions. All additional items must be filed by September 8, 2026. The following is noted:</i>

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				1. The Court requires a completed Duties and Liabilities of Personal Representative form. (Prob. Code § 8404.) 2. Proposed Letters have not been submitted. 3. A proposed order is needed.
22	26PR-0145	Estate of: Delia Sowell	Petition Filed: 04/28/2026 [DUE 7/28/26] WILL cont'd 6/9/26	CONTINUED LIST. The Petition is continued to January 5, 2027 at 9:01 am. in D-4. All additional items must be filed by December 8, 2026. The following is noted: 1. Petitioner is not listed in Item 8. Please review the instructions therein. 2. Item 8 of the Petition does not provide the name of the trustee and the trust beneficiaries. (See Super. Ct. San Luis Obispo County, rule 11.303(c).) Without this information, the court cannot determine if notice has been correctly provided under Probate Code section 1208. 3. Item 8 of the Petition requires the date of death of each deceased individual identified in the Petition. Please refer to Superior Court, San Luis Obispo County, Local Rules, rule 11.303(e). 4. It appears that two of decedent's children are post deceased. Service on successors in interest of the deceased children are needed (Cal. Rules of Court, rule 7.51(e).) It is unclear if any of the grandchildren listed are the successors in interest to David Keith Sowell or Stephan Lee Sowell.
27	26PR-0075	Estate of: Michael Johnson	Competing Petition Filed: 7/24/2026 WILL	CONTINUED LIST. The Petition is continued to January 12, 2027 at 9:01 a.m. in D-4. All additional items must be filed by December 15, 2026. The following is noted:

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				1. <i>Item 3 of the Notice of Petition to Administer Estate filed July 24, 2026 is incomplete. The proposed personal representative must be named. Amended Notice is needed.</i> 2. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>
30	26PR-0257	Estate of: Christopher Scrivner	Petition Filed: 7/22/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to January 26, 2027 at 9:01 a.m. in D-4. All additional items must be filed by December 29, 2026. The following is noted:</i> 1. <i>A Notice of Petition to Administer Estate (JC Form DE-121) was not filed per code. (Prob. Code § 8100.)</i> 2. <i>Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i> 3. <i>Item 2d. of the Petition is incomplete. One of the boxes must be checked.</i> 4. <i>Item 5a. of the Petition is incomplete. Box (a) or (b) must be checked.</i> 5. <i>Item 5b. of the Petition is incomplete. One of the boxes must be checked.</i> 6. <i>Petitioner has waived bond as noted in Item 3e(3). The mandatory Waiver of Bond form (DE-142) has not been executed by Dustin Joseph Walker, waiving bond for Rhonda Hendrix. The bond waiver filed on July 22, 2026 indicates bond was waived by Dustin Joseph Walker for Dustin Joseph Walker. Dustin Joseph Walker is not the proposed personal representative. See Probate Code 8481(a)(2). An amended waiver is needed.</i> 7. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>

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<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				
10	24PR-0409	Estate of: Teddy Cobb	Petition Filed 2/06/26 - Final Distribution Waiver Account	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following:</i> 1. <i>A declaration is needed explaining how the fees will be paid by the administrator as the estate only contains a non-cash asset.</i> 2. <i>The prayer requests Petitioner be discharged upon filing of receipts. Petitioner will not be discharged until the Ex Parte Petition for Final Discharge is submitted and signed by the Court.</i> 3. <i>A proposed order is needed.</i>
17	26PR-0050	Estate of: John Goldman	Petition Filed 2/19/2026 - Spousal Property Petition	APPROVED LIST.
18	26PR-0101	Estate of: Barry Lewis	Petition Filed: 03/27/2026 [DUE 7/28/26] WILL; cont'd 6/2/26	APPROVED LIST.
23	26PR-0213	Estate of: Camerina Perez	Petition Filed: 06/17/2026 INTESTATE	APPROVED LIST.
24	26PR-0225	Estate of: Karen Franks	Petition Filed: 06/24/2026 INTESTATE	APPROVED LIST.
25	26PR-0256	Estate of: Cindy Davis	Petition Filed: 7/20/2026 INTESTATE	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following issue: Item 8 of the Petition appears to provide an address for James Samuel Heinrichs at the San Luis Obispo County Jail. Clarification is</i>

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				<i>needed as to if this is a temporary address and if so, a permanent address is needed.</i>
28	26PR-0229	Estate of: Judy Randazzo	Petition Filed: 06/30/2026 WILL	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following: The original will must be lodged with the Court pursuant to Probate Code section 8200. If the original will cannot be located, Petitioner needs to address the presumption of revocation.</i>
29	26PR-0232	Estate of: Samuel Cullen	Petition Filed: 7/1/2026 INTESTATE	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following:</i> <i>Item 2d(1) is checked. A bond of \$541,943.00 is required as one of the proposed personal representatives lives out of state. (Cal. Rules of Court, rule 7.201(b); Super. Ct. San Luis Obispo County, rule 11.306) It is unclear if the parties are claiming an exceptional circumstance under San Luis Obispo Local Rule, rule 11.306(b). Clarification is needed.</i> <i>Item 3d(2) indicates the annual gross income from real property is \$434,743, but the gross fair market value of the real property and the net value of the real property are not listed in 3d(4) and 3d(6). Clarification is needed.</i>
<u>The following matters remain SET FOR HEARING and you should appear:</u>				
1	18PR-0186	Estate of: Phyllis Sarno-Pratt	Status Report or Final Distribution and Accounting [DUE 7/24/2026]	HEARING LIST: <i>Zoom or personal appearance is required. It appears a Status Report is attached to the Notice of Hearing filed on August 11, 2026, but the Status Report has not actually been filed and set for hearing. Fees for the most</i>

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				<i>updated Status Report have not yet been paid, and it is not currently before the Court for consideration. At this time, the Court does not have a Status Report or Petition for Final Distribution on file by the July 24, 2026 deadline ordered.</i>
2	21PR-0171	Estate of: David Perry	Petition Filed 11/25/2025 - Final Distribution and Accounting [DUE 7/28/26]; cont'd 9/16/25, 4/7/26	<i>Still under review, please check back.</i>
3	21PR-0279	Estate of: Betty Robinson	Status Report Filed 8/11/2025 [DUE 7/28/26] cont'd 3/17/26	HEARING LIST: <i>Zoom or personal appearance is required. The following issues remain from the last hearing:</i> <i>1. The current Status Report lacks proof of service of the Notice of Hearing and the required warnings under Probate Code section 12201.</i> <i>2. A proposed order is needed.</i>
5	22PR-0416	Estate of: Albert Bruce	Petition Filed 2/10/2026 - Final Distribution Waiver Account	<i>Still under review, please check back.</i>
6	23PR-0062	Estate of: Pamela Bauske	Status Report Filed: 7/13/2026	HEARING LIST: <i>Zoom or personal appearance is required. Petitioner should be prepared to discuss the plan to close the estate. The following is noted:</i> <i>1. The Second Status Report filed December 9, 2025 and heard on February 3, 2026 has not yet been approved, and was continued to this date. Another Status Report was filed on July 13, 2026. It is unclear if this is intended to amend the current Second Status</i>

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				<i>Report, or if it needs its own hearing date as a Third Status Report. It is recommended the Court treat the Third Status Report as an Amended Second Status Report absent objection.</i> 2. <i>The proof of service of Notice of Hearing filed July 13, 2026 with the Third Status Report does not specify which Status Report was served.</i>
7	23PR-0079	In Re: Janice A Pankey Trust dated 9/12/2012	Petition Filed 2/10/2026 - Approving Compensation	Still under review, please check back.
9	24PR-0214	Estate of: Neal Franklin	Order to Show Cause re Dismissal [DUE 7/7/26]; cont'd 6/16/26	HEARING LIST: Zoom or personal appearance is required. The Declaration file July 6, 2026 has been reviewed, and it is recommended the Court set the bond at \$0.
11	25PR-0104	Estate of: Christopher Rounds	Order to Show Cause re Dismissal; Petition Filed 4/3/2025 - WILL [DUE 7/21/26]; cont'd 5/27/25 & 1/13/26 (Amended Petition Filed 1/13/26)	HEARING LIST: Zoom or personal appearance is required. The following issues remain: 1. <i>An Amended Petition was filed January 13, 2026. Due to this Amendment, new <u>Notice and Publication</u> stating that amendment occurred are needed. (Cal. Rules of Court, rule 7.53.)</i> 2. <i>A Proof of Holographic Instrument was provided but a copy of the purported will to be admitted to probate was not attached, as required. (Prob. Code, §§ 8220, 8222.)</i> 3. <i>The Declaration attached to the Proof of Publication filed January 13, 2026 indicates that Bradley Daniel Rounds has waived bond. The mandatory Waiver of</i>

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				<i>Bond form (DE-142) has not been executed and is not attached to the Petition (Probate Code §8481(a)(2).)</i> 4. <i>Amended proposed Letters are needed. The proposed Letters submitted on January 13, 2026 are not signed and the affirmation portion is incomplete.</i>
14	25PR-0301	In Re: The Patricia L. McGinnis Living Trust dated January 3, 2024	Petition Filed 9/12/2025 - Compelling Accounting and Removal of Trustee, c/f: 4/14/26	Still under review, please check back.
15	26PR-0038	In Re: The Jay Clark Johnson Trust date 9/19/2018	Petition Filed 2/03/2026 - Petition Compel Trustee to Report and Account	Still under review, please check back.
19	PR040209	Estate of: J. Carl Treise	Petition to Withdraw Funds from Blocked Account	Still under review, please check back.
20	PR040209	Estate of: J. Carl Treise	Petition Filed 1/27/2026 - Instruct Trustee; cont'd 6/2/26	Still under review, please check back.
26	25PR-0160	In Re: James Michael Benson Family Trust dated May 23, 2000	Petition Filed: 5/21/2026 Approve Settlement Agreement	Still under review, please check back.

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. **Emails must contain:**
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**
3. Further, email inquiries must conform to the following guidelines:
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
 - c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. This email procedure is NOT to be utilized for:

- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
 - c. Confirmation that documents have been reviewed.
5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.